

rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Indeed, Plaintiff demonstrates a level of sophistication in the manner in which she has filed pleadings and pursued relief on her own behalf since this case was initiated on August 20, 2024.

Failure to File a Timely Opposition

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Applied here, the Court finds that failure to timely oppose both the Motion to Strike and the Demurrer is a deemed to be her consent to the granting of both motions.

Ruling

Defendant United States Fire Insurance Company’s Motion to Strike is **granted**. Defendant United States Fire Insurance Company’s Demurrer to Plaintiff’s Seconded Amended Complaint is **sustained** without leave to amend. The Court will execute the two proposed orders lodged by Defendant U.S. Fire on September 19, 2025.

10. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT**
FILED BY: UNITED STATES FIRE INSURANCE COMPANY
TENTATIVE RULING:
See Line 9.